

Allauddin v. State of U.P.

Allahabad High Court · Division Bench · 12 February 2016 · Writ-C No. 6132 of 2016 · **Writ disposed; competent authority to decide clause 6.5 dispute**

HEADNOTE

A challenge to a Tehsildar recovery citation for electricity dues after disconnection is a factual dispute for clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court disposed of the writ without deciding merits and directed the competent authority to examine and decide any such dispute expeditiously, preferably within six weeks.

FACTUAL SUMMARY

Allauddin challenged a citation dated 22 December 2015 issued by the Tehsildar Sadar, District Maharajganj, for recovery of electricity dues. He contended that the connection had been disconnected on 18 November 2010, so he could not be required to deposit those dues. Counsel for the Power Corporation stated that if a dispute were raised it would be decided in accordance with law expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

dues dispute after disconnection

HOLDING

Whether electricity dues remain recoverable after disconnection is a factual dispute to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ court will not decide the claim on merits and will direct the competent authority to examine and decide any such dispute expeditiously in accordance with law. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ELECTRICITY DUES REMAINED RECOVERABLE AFTER DISCONNECTION ON 18 NOVEMBER 2010

The Court expressly declined to adjudicate the merits of the petitioner's claim. ¶ 6